

BC596896 BC596896

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-07

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Case Number: BC596896 Hearing Date: August 7, 2026 Dept: 512

HEARING DATE: Fri., August 7, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Kavoukjian,
et al. v. Organic America LLC,

et

al.

CASE NUMBER: BC596896

NOTICE: NO

PROCEEDINGS: AMENDED

MOTION TO AMEND JUDGMENT TO ADD JUDGMENT DEBTOR ALTER EGO

MOVING PARTY: Defendant

Bagrat Ogannes

RESP. PARTY: Plaintiff Armen Kavoukjian

MOTION TO AMEND JUDGMENT

(CCP § 187)

TENTATIVE RULING:

Defendant Bagrat Ogannes' Amended

Motion to Amend Judgment to Add Armen Kavoukjian as the Alter Ego of

Greeneden, LLC is CONTINUED to September 22, 2026 at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days prior to the next scheduled hearing, Defendant is to file and serve proper notice of hearing on the Amended Motion.

Moving party is ordered to give notice.

SERVICE:

☐ Proof of Service Timely Filed (CRC, rule 3.1300) NO

☐ Correct Address (CCP §§ 1013, 1013a) NO

☐ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) NO

OPPOSITION: Filed
on July 27, 2026 ☐ Late ☐ None

REPLY: Filed
on July 31, 2026 ☐ Late ☐
☐ None

ANALYSIS:

I.

Background

On August 20, 2019, an Amended Judgment was entered in favor of Defendants Tigran Hakobyan, Giorgi Imnaishvili, and Bagrat Ogannes against Plaintiffs Armen Kavoukjian and Greeneden, LLC on five causes of action. (8/20/19 Amended Judgment.) Further, the Court ordered that Defendants were to recover from Plaintiffs costs in the amount of \$3,427.21, and attorney's fees from Greeneden, LLC in the amount of \$430,000.00. (8/20/19 Amended Judgment.)

On June 11, 2020, the case was transferred and reassigned to Department 96 of the Stanley Mosk Courthouse following closure of Department 44. (6/11/20 Order.)

On February 9, 2021, the case was transferred to Department 54 at the Stanley Mosk Courthouse. (2/9/21 Notice.)

On February 10, 2021, the Second District Court of Appeal issued a Remittitur; therein, the appellate court affirmed the Amended Judgment in this action.

On July 19, 2021, Greeneden, LLC filed Notice of Bankruptcy.

On March 17, 2022, Greeneden, LLC filed a Notice of Bankruptcy Complete.

On July 26, 2022, Greeneden, LLC filed Notice of Liquidation of Greeneden, LLC.

On May 20, 2026, Ogannes filed the instant Motion to Amend Judgment to Add Armen Kavoukjian as the Alter Ego of Greeneden, LLC (the "Motion").

On June 1, 2026, Ogannes filed an Amended Motion.

On July 27, 2026, Kavoukjian filed an Opposition.

On July 31, 2026, Ogannes filed a Reply.

II. Procedural Issues

As an initial matter, the Court notes the Amended Motion's service and notice of hearing are defective.

As to service, the Amended Motion is accompanied by a proof of service that states a "Declaration of Richard Foster In Support of Brief Supporting Court's Authority to Amend Judgment to Add Armen Kavoukjian as the Alter Ego of Greeneden, LLC" was served by mail on Defendants on June 1, 2026. (Amended Motion, Proof of Service.) However, there is no proof of service filed stating the Amended Motion and notice of hearing were served on Kavoukjian.

However, the Court notes a timely Opposition was filed to the Amended Motion. Accordingly, the Court does not find that the defective proof of service bars the Court issuing a ruling on the Amended Motion.

That said, the Court also finds the Amended Motion's notice of hearing is incorrect as to the date, department, and judicial officer. While the Court acknowledges the Opposition's caption includes the correct date and time, the Opposition's caption lists the incorrect department and judicial officer. As such, the Court cannot find that proper notice of hearing on the Amended Motion was provided to Kavoukjian.

The Court may not rule on the Amended Motion absent proper notice of hearing.

Thus, the Amended Motion is CONTINUED.

III.

Conclusion
& Order

For the foregoing reasons, Defendant Bagrat Ogannes' Amended Motion to Amend Judgment to Add Armen Kavoukjian as the Alter Ego of Greeneden, LLC is CONTINUED to September 22, 2026 at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days prior to the next scheduled hearing, Defendant is to file and serve proper notice of hearing on the Amended Motion.

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